

		Inc. v. Superior Court (1997) 53 Cal.App.4th 216, 224 [motion must be supported by factual evidence by way of declarations setting forth specific facts justifying each category of materials sought to be produced]; see also Clark Decl., in passim; Compl. ¶¶ 11-16, Ex. 2.) Sanctions are DENIED as plaintiff has failed to comply with Code of Civil Procedure section 2023.040. (See Code Civ. Proc., § 2023.040 ["A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought."].) Plaintiff shall give notice.
3	Satar vs. BMW of North America, LLC 2021-01192103	Motion to Strike or Tax Costs Defendant BMW of North America, LLC's Motion to Tax Costs is GRANTED in part and DENIED in part. Code of Civil Procedure § 1032, subdivision (b) states: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." Code of Civil Procedure Section 1033.5 sets forth the items that are allowable as costs. Items not mentioned in section 1033.5 may be allowed or denied in the court's discretion. Additionally, Code of Civil Procedure section 1033.5(c) states that allowable costs shall be reasonable in amount and "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." "If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary." (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1266.) Once the opposing party makes such a showing, in support of a

		motion to tax costs, the challenged items are put in issue and the burden shifts back to the party claiming them as costs. (Ibid.) But conclusory assertions alone are not enough to cause this shift to happen. "[I]t is not enough for the losing party to attack submitted costs by arguing that he thinks the costs were not necessary or reasonable. Rather, the losing party has the burden to present evidence and prove that the claimed costs are not recoverable." (Seever v. Copley Press, Inc. (2006) 141 Cal.App.4th 1550, 1557.) Item 1 - Filing and Motion Fees: Defendant seeks to tax costs of \$1,040. Defendant contends that other than the initial filing fee of \$435 and \$60 to file a fee motion, the remaining costs should be stricken because the motions were unsuccessful. Defendant cites to no case law that supports a finding that a prevailing party may not cover costs for unsuccessful motions. There is no indication the motions were not reasonably filed. Accordingly, the request to reduce Item 1 costs is DENIED. Item 4 – Deposition Costs: Code of Civil Procedure section 1033.5, subdivision (a)(3) allows the recovery of costs for: "Taking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed." "The burden of proof that the deposition was unnecessary or that the costs of taking the deposition were unreasonable is on the party seeking to have that item taxed or reduced." (County of Kern v. Ginn (1983) 146 Cal.App.3d 1107, 1113 (holding deposition of defendant and defendant's daughter were necessary thus allowable costs].)
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		Defendant contends Plaintiff seeks to recover the costs of taking unnecessary depositions of service advisors and technicians. Other than argument, Defendant provides no basis for its opinion. Moreover, it is not unreasonable to depose service advisors and technicians regard their repair orders. As for the deposition of Plaintiff's expert Brent Marsh, Defendant contends this cost is duplicative of costs claimed in Item 8. However, the costs claimed in Item 4 are for the court reporter and transcript costs, not the expert fees charged by Marsh for his deposition. Accordingly, the request to reduce Item 4 costs is DENIED. Item 5 – Service of Process Plaintiff seeks to recover \$2,113.50 for serving multiple subpoenas on Sterling BMW, and BMW of Fremont, and their employees despite not calling any of those witnesses to testify during the trial. Defendant contends the only service of process cost that Plaintiff can be said to have reasonably incurred was \$40 for serving the summons and complaint on BMW NA. In Doe v. Los Angeles County Dept. of Children & Family Services (2019) 37 Cal.App.5th 675, the plaintiff challenged the recovery of fees related to service of process for witnesses who were never deposed and never testified at trial. (Id. at 694.) The court found that the Code of Civil Procedure does not limit recovery of service of process fees to witnesses used at trial" and awarded such service fees. (Ibid.) Accordingly, the request to reduce Item 5 costs is DENIED. Item 8 – Witness Fee Expert witness fees are generally not recoverable as costs unless authorized by statute. (Civ. Proc. Code § 1033.5(b)(1).) In this case, expert witness fees are expressly
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		recoverable by a prevailing buyer under Civil Code §1794(d). Defendant objects to the expert fees on the ground that Plaintiff has failed to show that the time and hourly rates charged by their expert Marsh were reasonable. The invoices submitted by Plaintiff regarding Marsh's service indicate his hourly rate is reasonable and the hours charged are related to this case. Accordingly, the request to strike Item 8 fees is DENIED. Item 11 – Court Reporter Fees Per Code of Civil Procedure section 1033.5, recoverable costs include "Court reporter fees as established by statute." (Code Civ. Proc., § 1033.5, subd. (a)(11).) Additionally, "costs for the services of the official court reporter shall be recoverable as taxable cost by the prevailing party as otherwise provided by law." (Gov. Code, § 68086, subd. (c).) Similarly, "[t]he fees and charges of the certified shorthand reporter shall be recoverable as taxable costs by the prevailing party as otherwise provided by law." (Gov. Code, §68086, subd. (d)(2).) Defendant contends the court reporter fees are excessive and inconsistent with the Orange County Superior Court fee schedule. Court reporters receive \$430.00 for proceedings lasting half a day; \$860.00 for proceedings lasting a full day and a per diem of \$30.00 for proceedings under 1 hour. "[I]f an official court reporter is not available, a party may arrange for, at the party's expense, the presence of a certified shorthand reporter to serve as an official pro tempore reporter. At the arranging party's request, the court shall appoint the certified shorthand reporter to be present in the courtroom and serve as the official reporter pro tempore unless there is good cause shown for the court to refuse that appointment. The fees and charges of the certified shorthand reporter shall be
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		recoverable as taxable costs by the prevailing party as otherwise provided by law.” (Gov. Code § 68086(d)(2).) Plaintiff contends she is entitled to recover her court report costs because an official court reporter was not available. Because such costs are compensable, the request to strike such costs is DENIED. Item 14 – Electronic Filing Defendant argues Plaintiff’s claim of \$1,347.72 in fees for electronic filing and service are excessive on their fact and not supported by any documentation. Other than argument, Defendant provides no basis for its opinion. Fees for the electronic filing or service of documents through an electronic filing service provider are recoverable costs. (Code Civ. Proc. §1033.5(a)(14).) Accordingly, the request to strike Item 14 costs is DENIED. Item 15 – Other Costs Defendant objects to Plaintiff’s request for “other” costs which include Westlaw research charges, food, travel and lodging expenses and “anticipated” expenses. “Fees for legal research, computer, or otherwise, may not be recovered under section 1033.5.” (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 776.) Therefore, \$965.18 in Westlaw expenses is stricken from Plaintiff’s recoverable costs. As for costs related to “Food & Parking,” [r]outine expenses for local travel by attorneys or other firm employees are not reasonably necessary to the litigation.” (Id. at 775-776.) Meal expenses are also not justified as “necessary to conduct the litigation” since attorneys have to eat, whether they are conducting litigation or not.” (Id. at 774-775.) Moreover, Plaintiff’s counsel’s office is located in Laguna Beach,
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		and attendance at court did not require out-of-town travel. Therefore, \$330.55 in "Food & Parking" is stricken from Plaintiff's recoverable costs. It is unclear what "anticipated" costs Plaintiff seeks in connection with the attorney fee motion and motion to tax costs. Therefore, \$300 in "anticipated" costs is stricken from Plaintiff's recoverable costs. Accordingly, the request to strike Item 15 costs in the amount of \$1,595.73 is GRANTED. Based on the foregoing, the Court taxes a total of \$1,595.73 in costs and awards Plaintiff \$48,336.62. Moving Party shall give notice.
4	Doe vs. Unruly Agency LLC 2023-01345140	1. Motion to Compel Production 2. Ex Parte Application Plaintiff Jane Doe's Motion to Compel Defendant Unruly Agency LLC to Produce Further Responses to Plaintiff's Request for Production of Documents, Set Two is GRANTED. (Code Civ. Proc. §2031.310.) Within 30 days of this ruling, Defendant Unruly Agency LLC shall produce further verified responses without objection to Plaintiff's Request for Production of Documents, Set Two, Request Nos. 9-11 and 13-25. Within 45 days of this ruling, Defendant Unruly Agency LLC shall produce all responsive documents identified in their supplemental responses. To the extent any document is withheld on the basis of a claim of privilege, Defendant Unruly Agency LLC shall provide a privilege log that complies with the requirements of Code Civ. Proc. §2031.240, subd. (c).